

Virendra Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 May 2016 · Writ-C No. 20050 of 2016 · **Directed decision on pending 6.5 objection within a week.**

HEADNOTE

After liberty to object under clause 6.5 of the U.P. Electricity Supply Code, 2005, a consumer's billing objection of 28.3.2016 remained undecided and supply stayed disconnected. Noting that clause 6.5 allows seven days for a decision, the Division Bench disposed of the writ by directing respondent no. 3 to decide the objection within a week of production of a certified copy. Restoration of supply was not ordered.

FACTUAL SUMMARY

Virendra Kumar disputed a bill raised by Dakshinanchal Vidyut Vitran Nigam Ltd. An earlier Writ-C No. 11404 of 2016 was disposed of with liberty to object under clause 6.5 of the U.P. Electricity Supply Code, 2005. He filed that objection on 28 March 2016. With the objection still pending and supply cut off, he sought a mandamus to decide it and restore electricity, alleging that his family's livelihood depended on supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

time for decision on billing objection

HOLDING

Clause 6.5 of the U.P. Electricity Supply Code, 2005 stipulates seven days for deciding a consumer's billing objection; where that objection remains pending, the writ is disposed of by directing the licensee (respondent no. 3) to decide it within a week of production of a certified copy, without restoring supply or adjudicating the bill. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 The pending 6.5 objection of 28.3.2016 was left to the licensee to decide within the Code's seven-day window; the Court did not restore supply or decide the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — RESTORATION OF SUPPLY AND MERITS OF THE BILL

Petitioner also sought restoration of electricity; the Court only timed a decision on the pending 6.5 objection. ¶ 1